

Sultan Khan v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 8 July 2021 · WRIT - C No. 8828 of 2021 · **Writ petition dismissed; petitioner relegated to the competent authority under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.**

HEADNOTE

A writ seeking correction of an electricity bill dated 9 October 2020 and restoration of supply, after a disconnection notice for unpaid dues and an FIR under section 135 of the Electricity Act, 2003 against the petitioner's son, was dismissed. The Division Bench held that the issues required a factual inquiry and that the consumer had a remedy before the competent authority under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sultan Khan sought a mandamus to correct an electricity bill dated 9 October 2020 and to restore his supply. The licensee had issued a notice dated 15 October 2020 threatening disconnection for unpaid dues, and an FIR under section 135 of the Electricity Act, 2003 had been lodged against his son. He claimed a valid connection and that the bill was based on incorrect facts. Counsel did not appear on two earlier listings; the Division Bench took up the petition on 8 July 2021 with the licensee's counsel present.

HOLDING-UNITS

INTERPLAY · UP-2005

writ-jurisdiction-alternate-remedy-billing-dispute

HOLDING

Where a consumer seeks a writ of mandamus to correct an electricity bill and restore supply, and the dispute turns on facts including alleged unpaid dues, the High Court will not inquire into the bill: the consumer has a remedy before the competent authority under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, and the writ petition is dismissed. ¶ 1

PRINCIPLE TAGS

bill-dispute-requiring-facts-relegated-to-competent-authority The Court treated the lis as a billing and reconnection dispute requiring factual inquiry, noted but did not decide the section 135 FIR against the petitioner's son, and dismissed the writ because a competent-authority remedy existed under the Electricity Act, 2003 and the Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 9 OCTOBER 2020

¶ 1

NOT DECIDED — WHETHER THE ELECTRICITY CONNECTION SHOULD BE RESTORED OR RECONNECTED

¶ 1

NOT DECIDED — THE FIRST INFORMATION REPORT UNDER SECTION 135 OF THE ELECTRICITY ACT, 2003 AGAINST THE PETITIONER'S SON

Recorded as background; the Court treated the dispute as one about the bill and did not examine the FIR. ¶ 1

